Introduced: Brotman, 11/19/24
Adopted: 12/03/24
Gharpetian/Najarian
Abstain: Brotman

ORDINANCE NO. 6034

AN ORDINANCE OF THE CITY OF GLENDALE, CALIFORNIA AMENDING SECTIONS 30.10.070, 30.11.020, 30.11.050, 30.12.020, 30.14.020, 30.15.020, 30.16.020, 30.34.080 and 30.70.050, OF TITLE 30 OF THE GLENDALE MUNICIPAL CODE, 1995, RELATING TO ACCESSORY DWELLING UNITS AND JUNIOR ACCESSSORY DWELLING UNITS (CASE NO. PZC-0013-2024)

BE IT ORDAINED BY THE COUNCIL OF THE CITY OF GLENDALE:

WHEREAS, the City of Glendale ("City") regulates accessory dwelling units pursuant to Title 30 of the Glendale Municipal Code, 1995 ("GMC"), including Chapter 30.34, as well as pursuant to the Glendale Building and Safety Code; and

WHEREAS, California Government Code ("CA Gov't Code") Sections 66314, *et seq.*, allow local agencies to enact ordinances providing for the creation of accessory dwelling units and junior accessory dwelling units, and establish standards for ministerial review of such units; and

WHEREAS, the City adopted Housing Element 2021-2029 of the General Plan on February 1, 2022 and this Element was certified by the State Department of Housing and Community Development ("HCD") on February 27, 2023; and

WHEREAS, CA Gov't Code Section 66319 declares that accessory dwelling units in areas zoned to allow single-family or multi-family dwelling residential uses do not exceed the allowable density for the lot upon which the accessory dwelling unit is located, and that accessory dwelling units are a residential use that is consistent with the existing general plan and zoning designation for the lot; and

WHEREAS, the development of accessory dwelling units and junior accessory dwelling units will further local, regional and state goals for meeting the Regional Housing Needs Allocation set forth in the City's Housing Element 2021-2029; and

WHEREAS, the City's Housing Element 2021-2029, contains Policy 1.9 "Encourage flexibility in the Zoning Ordinance to promote a wide range of housing types"; Policy 1.3 "Promote the dispersion of affordable housing throughout the City while recognizing the potential for the integration of market-rate and affordable units within individual projects"; Policy 2.9 "Respect scale, historic continuity, and a sense of community in new residential development"; and, Policy 6.10 "encourage the use of sustainable building practices in residential developments" and permitted accessory dwelling units and junior accessory dwelling units implements these policies; and

WHEREAS, the Greener Glendale Plan for Community Activities was adopted by the City Council on March 12, 2012, for the purposes of promoting sustainable practices and establishing greenhouse gas reduction strategies in accordance with AB 32 (2006) and SB 375 (2008); and

WHEREAS, the Greener Glendale Plan for Community Activities Objective UD4 directs Glendale to continue to promote infill development to increase sustainability and

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livable environment and permitting accessory dwelling units and junior accessory dwelling units is consistent with that objective; and

WHEREAS, CA Gov't Code Section 66314 requires cities to permit accessory dwelling units and junior accessory dwelling units in areas zoned for single family and multifamily residential uses, but allows cities to designate areas where accessory dwelling units and junior accessory dwelling units may be permitted based on the adequacy of water and sewer services and the impact of accessory dwelling units and junior accessory dwelling units on traffic flow and public safety, as well as, allows cities to impose objective standards on accessory dwelling units that include, but are not limited to, parking, height, setback, landscape, architectural review, maximum size of a unit, and standards that prevent adverse impacts on any real property that is listed in the California Register of Historical Resources; and

WHEREAS, on December 8, 2020, the City Council adopted Ordinance Nos. 5957 and 5958 amending permanent standards and processes for the review and approval of accessory dwelling units and junior accessory dwelling units, which Ordinance was codified in Section 30.34.080 of the GMC; and

WHEREAS, on November 15, 2022, the City Council adopted Ordinance No. 5997 incorporating state law amendments and minor modifications and clarifications related to accessory dwelling units and junior accessory dwelling units; and

WHEREAS, following HCD's review of Ordinance No. 5997, HCD sent the City a series of letters, commencing with a letter dated December 7, 2023, and including a June 19, 2024 "Notice of Violation" letter, with written findings alleging portions of Ordinance No, 5997 does not comply with CA Gov't Code Sections 66314, *et seq.* ("State ADU Law"), to which the City responded; and

WHEREAS, pursuant to CA Gov't Code Section 66326(b), the City must consider the findings made by HCD pursuant to its review of Ordinance No. 5997 and must either amend the Ordinance to comply with State ADU Law, and/or re-adopt the Ordinance without changes, but with findings in a resolution adopting the Ordinance that explains the reasons the City believes that the Ordinance complies with State ADU Law, despite HCD's findings; and

WHEREAS, on August 20, 2024, at a regularly scheduled City Council meeting, and in response to the above-referenced written findings, the City Council considered said findings and initiated amendments to Title 30 of the GMC related to development standards for accessory dwelling units and junior accessory dwelling units as to portions of said findings, and directed staff to re-adopt Ordinance No. 5997 without changes (with findings in a resolution adopting the Ordinance explaining the reasons the City believes the Ordinance complies with State ADU Law despite HCD's findings) as to certain other portions of Ordinance No. 5997; and

WHEREAS, the City's Planning Commission considered and recommended approval of these amendments to Title 30 of the GMC, as well as readoption of portions of Ordinance No. 5997 with findings, at its meeting of October 16, 2024.

NOW THEREFORE, THE CITY COUNCIL OF THE CITY OF GLENDALE DOES ORDAIN AS FOLLOWS:

SECTION 1. Findings.

The City Council finds, determines, and declares that:

1. The above recitals are true and correct and are incorporated herein by reference as if set forth in full.

2. All of the findings contained in Resolution No. 24-189 (A Resolution of the City Council of the City of Glendale, California, Making Findings That Certain Portions of Ordinance No. 5997 Complies With California Government Code Sections 66314, *et seq.*, and 66333, *et seq.* Despite The Findings of the California Department of Housing and Community Development, Which Findings Are Required Pursuant to California Government Code Section 66326 Prior to Re-Adopting Those Portions of Ordinance No. 5997 Without Changes Within Ordinance Nos. 6034 and 6035) are hereby incorporated herein by reference as if set forth in full.

SECTION 2. Section 30.10.070 of the Glendale Municipal Code, 1995 is hereby amended to read as follows:

30.10.070 Zoning districts – Regulations.

A. Permitted Primary Uses and Structures. The purpose of the sectional listing of permitted primary uses and structures contained within each zone regulations is to identify all principal uses and structures that are allowable on a lot within that zone as a matter of right. Subject to the provisions of the zone, except as otherwise provided, no building, structure or land shall be used and no building, structure or use shall be established except the listed permitted primary uses and structures.

B. Permitted Accessory Uses and Structures. The purpose of the sectional listing of permitted accessory uses and structures contained within each zone regulations is to identify uses and structures that are allowable when they are integrated with and clearly incidental to a primary use on the same lot. All buildings and structures shall conform to the development standards of the zone.

C. Temporary Uses and Structures. The purpose of the sectional listing of temporary uses and structures is to identify those uses that may be allowable within a given zone for a limited amount of time and under certain specified conditions.

D. Conditional Uses and Structures. The purpose of the sectional listing of conditional uses and structures is to identify those uses and structures which must first obtain permission for their establishment within the zone by a conditional use permit. The specific conditional uses and structures which are listed are considered to be typical of uses which require individual review as to their particular characteristics and location, and ones that may require special conditions to their establishment in order to protect the health, safety and general welfare.

E. Compliance with Laws. Notwithstanding any provision in this code to the contrary, any establishment that engages in or carries out any activity contrary to federal, state or local laws shall be prohibited.

F. Development Standards—General. The development standards contained within this title and the various zones have been established in order to assure adequate levels of light, air and density of development, to maintain and enhance locally-recognized values of community appearance and to promote the safe and efficient circulation of pedestrian and vehicular traffic. The standards are in furtherance of the goals and objectives of the comprehensive general plan and are found to be necessary for the preservation of the community, health, safety and general welfare.

G. Site Requirements—General. The area and dimensions of all building sites shall be sufficient to accommodate the anticipated density of development, open spaces, setbacks and parking spaces.

H. Density. The density of development has been established for each zone in accordance with the comprehensive general plan in order to promote the orderly, efficient and most appropriate growth within the city, consistent with the planned capability of services and infrastructures. Density shall be calculated from the area of the lot before any public right-of-way dedications are made. An accessory dwelling unit and/or junior accessory dwelling unit on a lot developed with single-family or multi-family dwelling unit(s) is deemed a residential use consistent with the existing general plan and zoning designation for the lot, as provided for in the Government Code of the State of California, Section 66319.

I. Lot Size. Where minimum lot sizes or dimensions required within the zone standards, they have been established in order to promote the type and scale of development envisioned in the comprehensive general plan. Where existing lots with lesser size and dimensions are existing in a zone, an exception has been made in some zones for such lots when their development would not be harmful to the achievement of the overall goals and objectives of the plan.

J. Coverage. Maximum coverage requirements contained within certain zone standards have been established to provide minimum open spaces for light, air and ventilation and to reserve adequate area for open spaces, setbacks and other amenities. Coverage shall be calculated from the area of the lot after any public right-of- way dedications are made.

K. Height. Height standards are reflective of intensity and scale of development. In order to maintain a sound plan and compatibility with surrounding uses, the structural height of buildings must be regulated and intensities directed to their most appropriate location. Factors taken into consideration in the establishment of height criteria are shade/shadow effects; light, air and ventilation; scenic vistas; and intensity of development and ability to serve.

L. Unit Size. Minimum unit sizes as may be established in the various zones are for the purpose of assuring acceptable living areas, the control of overcrowding and the provision of conditions conducive to a decent, safe and sanitary environment.

M. Setbacks, Open Space and Landscaping Requirements. The purpose of setbacks, open space and landscaping requirements is to assure that an effective separation is provided

between properties and uses to foster compatibility, identity, privacy, light, air and ventilation and provide for landscaped areas in the living and working environments for visual relief and recreation. Setbacks and required landscaping shall be calculated from the property lines or area of the lot after any public right-of-way dedications are made.

N. Medical Marijuana Dispensary, Marijuana Dispensary, Marijuana Cultivation, Marijuana Processing, and Delivery or Distribution of Marijuana or Medical Cannabis Products as Prohibited Uses. Notwithstanding any other provision of this code, a medical marijuana dispensary, marijuana dispensary, marijuana cultivation, marijuana processing, and delivery or distribution of marijuana or medical cannabis products, as these terms are defined in Section 9.10.010, are prohibited in all zones, including all specific plan areas, except where the city is preempted by federal or state law from enacting a prohibition of any such prohibited uses, or is preempted by federal or state law from enforcing any of these prohibitions.

O. Home-Sharing Activities and Vacation Rentals. Home-sharing, as defined in Section 5.56.030, is permitted subject to the restrictions in Chapter 5.56. Vacation rentals, as defined in Section 5.56.030, are prohibited in all zones.

SECTION 3. Section 30.11.020 of the Glendale Municipal Code, 1995 is hereby amended to read as follows:

30.11.020 Residential district land uses and permit requirements.

A. Permitted Primary Uses and Structures. No building, structure or land shall be used and no building, structure or use in the residential zoning districts shall be erected, structurally altered, enlarged or established except the following permitted uses, buildings and structures identified with a "P" in Table 30.11–A.

B. Conditional Uses and Structures. The following uses and structures identified with a "C" in Table 30.11 – A may be permitted in the residential zoning districts subject to approval of a conditional use permit (Section 30.42). The development standards of this zone shall apply except as otherwise provided herein.

C. Temporary Uses. Temporary uses (identified with a "T" in Table 30.11 – A), allowed subject to approval and compliance with all applicable provisions of this Zoning Code.

D. Permitted Accessory Uses and Structures. Accessory uses, buildings and structures shall be permitted in zones identified with a "P" in Table 30.11 – A.

E. Wireless Telecommunications Facilities. Wireless telecommunications facilities, identified with a "W" in Table 30.11-A may be permitted subject to the approval of a wireless telecommunications facility permit as set forth in Chapter 30.48 of this code.

F. Standards for Specific Uses. Where the last column in the following tables ("See standards in Section") includes a section number, the regulations in the referenced section apply to the use; however, provisions in other sections of this Zoning Code may apply as well.

G. Historic Resources. Uses listed as permitted or conditionally permitted within a historic resource included on the Glendale Historic Register only (identified in Table 30.11 – A) are

permitted or conditionally permitted only within a designated historic resource on the Glendale Register of Historic Resources.

Table 30.11-A
RESIDENTIAL DISTRICTS AND PERMIT REQUIREMENTS

LAND USE (1)(2)	PERMIT REQUIREMENT BY ZONE							See Standards in Section or Chapter
	ROS	R1R	R1	R3050	R2250	R1650	R1250	
Residential Uses								
Domestic violence shelter	P	P	P	P	P	P	P	
Multiple residential dwellings				P	P	P	P	30.11.050
One residential dwelling per lot	P	P	P	P	P	P	P	30.34.110
Residential congregate living, limited	P	P	P	P	P	P	P	
Residential congregate living, medical					C	C	C	
Residential congregate living, non-medical				C	C	C	C	
Senior housing				P	P	P	P	
Education, Public Assembly, Recreation								
Community gardens	P	P	P	P	P	P	P	30.34.045
Day care center, only where operated at a church, synagogue, temple, or other house of worship, religiously affiliated or nonsectarian preschool. In determining whether to grant or deny a conditional use permit for a day care center hereunder, the content of any curriculum and every aspect of an organization's operations which are religious in nature shall not be considered				C	C	C	C	
Parks and playgrounds, operated by a homeowners' association and approved in connection with a subdivision	P	P	P	P	P	P	P	
Parks and playgrounds, private	C	C	C	C	C	C	C	
Parks and playgrounds, public	P	P	P	P	P	P	P	

LAND USE (1)(2)	PERMIT REQUIREMENT BY ZONE							See Standards in Section or Chapter
	ROS	R1R	R1	R3050	R2250	R1650	R1250	
Places of worship	C	C	C	C	C	C	C	
Schools, private					C	C	C	
Open Space and Resources								
Open space	P	P	P					
Transportation and Communication Uses								
Utility and transmission facilities	C	C	C	C	C	C	C	
Wireless telecommunication facilities	W	W	W	W	W	W	W	30.48
Accessory Buildings, Structures and Uses								
Accessory dwelling unit (ADU) and/or junior accessory dwelling unit (JADU) on a lot developed with one residential dwelling unit	P	P	P	P	P	P	P	30.34.080
Accessory dwelling unit(s) (ADU) on a lot developed with more than one residential dwelling unit	P	P	P	P	P	P	P	30.34.080
Accessory living quarters or guest house not to exceed an aggregate area of 500 sq. ft. of floor area	P	P	P	P	P	P	P	
Accessory buildings or structures, other than garages or carports, not to exceed 500 sq. ft. of floor area	P	P	P	P	P	P	P	
Accessory uses	P	P	P	P	P	P	P	
Antennas (pole type)	P	P	P	P	P	P	P	
Dish antennas	P	P	P	P	P	P	P	30.34.050
Home occupations	P	P	P	P	P	P	P	30.45
Home-sharing	P	P	P	P	P	P	P	5.110
Signs	P	P	P	P	P	P	P	30.33
Solar energy equipment	P	P	P	P	P	P	P	30.30.050
Temporary Uses								
Contractor's office and/or storage, temporary	T	T	T	T	T	T	T	

LAND USE (1)(2)	PERMIT REQUIREMENT BY ZONE							See Standards in Section or Chapter
	ROS	R1R	R1	R3050	R2250	R1650	R1250	
Temporary subdivision sales offices, sales trailers and model dwellings or trailers proposed for use as temporary sales offices shall be registered with the director of community development by an application for conditions of use. The director of community development may establish conditions for operations and maintenance, including, but not limited to, restrictions on hours of operation, lighting and promotional restrictions and reasonable termination of the temporary use. The decision of the director of community development shall be appealable.	T	T	T	T	T	T	T	
Uses Within a Historic Resource								
Cultural art centers	C	C	C	C	C	C	C	
Day care centers	C	C	C	C	C	C	C	
Museum	C	C	C	C	C	C	C	
Office	C	C	C	C	C	C	C	
Residential congregate living, non-medical					C	C	C	
Restaurants, full service not to exceed a seating capacity of 40 persons				C	C	C	C	
Retail stores, general merchandise	C	C	C	C	C	C	C	
Schools, physical instruction	C	C	C	C	C	C	C	
Schools, private specialized education and training	C	C	C	C	C	C	C	

Key to Permit Requirements	Symbol	See Chapter
Permitted use	P	
Conditional use—Conditional use permit required	C	30.42

Key to Permit Requirements	Symbol	See Chapter
Temporary use	T	
Wireless telecommunications facilities permit required	W	30.48
Use not allowed		

Notes:

(1) See Section 30.03.010 regarding uses not listed.

(2) See Chapter 30.70 for definitions of the land uses.

SECTION 4. Section 30.11.050 of the Glendale Municipal Code, 1995 is hereby amended to read as follows:

30.11.050 Residential district additional R-3050, R-2250, R-1650 and R-1250 development standards. The following standards shall apply in the R-3050, R-2250, R-1650, and R-1250 zones.

A. Dwelling Unit Size. The gross floor area of any dwelling unit shall be not less than provided herein. For the purpose of this section, dens, studies or other similar rooms which may be used as bedrooms shall be considered as bedrooms. Living rooms, dining rooms, kitchens, or bathrooms shall not be considered as bedrooms except that separate dining rooms in efficiency units or rooms that could be converted into additional bedrooms shall be considered as bedrooms. This development standard does not apply to or govern dwelling unit size for accessory dwelling units or junior accessory dwelling units, which are defined separately in Section 30.34.080.

1. Efficiency and one bedroom units: 600 square feet.
2. Two bedroom units: 800 square feet.
3. Three or more bedroom units: 1,000 square feet.

B. Private Outdoor Space. A minimum private outdoor space of 40 square feet shall be provided for each dwelling unit. Such private outdoor space shall be designed as a patio, deck, or balcony and shall have a minimum length or width of four feet and shall be directly accessible and an integral part of the dwelling unit which it serves.

C. Common Outdoor Space. A minimum common outdoor space of 200 square feet shall be provided per dwelling unit for the first 25 dwelling units on a lot; a minimum common outdoor space of 150 square feet shall be provided per dwelling unit for the second 25 dwelling units on a lot; a minimum common outdoor space of 100 square feet shall be provided per dwelling unit for each additional dwelling unit above 50 on a lot. Any common outdoor space shall have a minimum level surface dimension of 10 feet and a minimum area of 200 square feet.

Landscaping and seating shall be permanently integrated into all required common outdoor spaces. No street front setback area or street side setback area shall be used for common outdoor space. The developer shall pay an amount of money, established by the city council as a parks fee, to be used by the city for the purpose of fulfillment of recreational demand created by the project.

D. Distance Between Dwellings. Exterior walls of separate buildings containing dwelling units on the same lot shall be separated by a minimum distance of 12 feet. The windows or window/doors of any one dwelling unit may not face the windows or window/doors of any other dwelling unit unless separated by a distance of 12 or more feet except where the angle between the wall of the separate dwelling units is 90 degrees or more. Walls parallel to each other shall be considered to be at a zero degree angle.

E. Rooftop Equipment. For regulations concerning rooftop equipment, see Section 30.30.020 of this title.

F. Fences and Walls. For regulations concerning fences and walls, see Section 30.30.010.

G. Trash Collection Areas. For regulations concerning trash collection areas, see Section 30.30.030.

H. Access to Dwelling Units. An elevator shall be provided to serve all stories in a building containing more than three dwelling units where the floor area of any dwelling unit is located only on the third story and other dwelling units are located on the first and second stories.

I. Laundry Facilities. Laundry facilities shall be provided to serve all dwelling units on a lot. Such laundry facilities, constituting washer and dryer appliances connected to utilities, shall be provided in the individual dwelling units where there are three or less dwelling units on a lot. Where there are more than three dwelling units on a lot, laundry facilities shall either be provided in the individual dwelling units or in a common laundry room. A common laundry room shall be in an accessible location and shall have at least one washer and one dryer for each 10 dwelling units, maintained in operable condition and accessible to all tenants daily between the hours of 7:00 a.m. and 10:00 p.m.

J. Storage Space-Private. A minimum of 90 cubic feet of private storage space shall be provided for each dwelling unit outside such unit unless a private attached garage serving only the dwelling unit is provided. Such private storage space shall have a minimum horizontal surface area of 24 square feet and shall be fully enclosed and lockable.

K. Additional Standards for Floor Area Ratio Minimums.

1. Any development of three to seven multiple residential dwelling units shall not have a floor area ratio standard that is less than 1.0.

2. Any development of eight to 10 multiple residential dwelling units shall not have a floor area ratio standard that is less than 1.25.

3. To be eligible for the provisions in subsections (K)(1) and (K)(2) above, a multi-family housing development project shall meet all of the following conditions:

a. The project consists of at least three, but not more than 10, units.

b. The project is located in a multi-family residential zone, commercial zone, or a mixed-use zone, and is not located in either of the following:

i. Within a single-family zone.

ii. Within a historic district or property that is included on the State Historic Resources Inventory, as defined in Section 5020.1 of the Public Resources Code, or within a site that is or contains buildings, sites, objects, structures, neighborhoods, cultural landscapes, and archaeological sites, that are

designated or listed as a city or county landmark or historic property or district pursuant to a city or county ordinance.

4. This subsection shall not be construed to prohibit the city from imposing any zoning or design standards, including, but not limited to, building height and setbacks, on a housing development project that meets the requirements of this subsection, other than zoning or design standards that establish floor area ratios or lot size requirements that expressly conflict with the standards contained in this subsection.

5. The city may not impose a lot coverage requirement that would physically preclude a housing development project that meets the requirements of this subsection from achieving the floor area ratio allowed herein.

SECTION 5. Section 30.12.020 of the Glendale Municipal Code, 1995 is hereby amended to read as follows:

30.12.020 Commercial district land uses and requirements.

A. Permitted Primary Uses and Structures. No building, structure or land shall be used and no building, structure or use in the commercial zoning districts shall be erected, structurally altered, enlarged or established except the following permitted uses, buildings and structures identified with a "P" in Table 30.12-A.

B. Conditional Uses and Structures. The following uses and structures identified with a "C" in Table 30.12-A may be permitted in the commercial zoning districts subject to approval of a conditional use permit (Chapter 30.42). The development standards of this zone shall apply except as otherwise provided herein.

C. Administrative Uses and Structures. The following uses and structures identified with an "A" in Table 30.12-A may be permitted in the commercial zoning districts subject to approval of an administrative use permit (Chapter 30.49). The development standards of this zone shall apply except as otherwise provided herein.

D. Temporary Uses. Temporary uses (identified with a "T" in Table 30.12-A), allowed subject to approval and compliance with all applicable provisions of this Zoning Code.

E. Permitted Accessory Uses and Structures. Accessory uses, buildings and structures shall be permitted in zones identifies with a "P" in Table 30.12A.

F. Wireless Telecommunications Facilities. Wireless telecommunications facilities, identified with a "W" in Table 30.12-A may be permitted subject to the approval of a wireless telecommunications facility permit as set forth in Chapter 30.48 of this code.

G. Standards for Specific Uses. Where the last column in the following tables ("See Standards in Chapter or Section") includes a Chapter or Section number, the regulations in the referenced chapter or section apply to the use; however, provisions in other sections of this Zoning Code may apply as well.

H. Uses Not Listed. Land uses that are not listed on Table 30.12-A, or are not shown in a particular zoning district are not allowed, except for other uses which the director of community development determines to be similar in nature, function and operation to listed permitted primary uses within these zones.

Table 30.12-A
COMMERCIAL DISTRICTS AND PERMIT REQUIREMENTS

LAND USE (1)(2)	PERMIT REQUIREMENT BY ZONE							See Standards in Chapter or Section
	C1	C2	C3	CR	CPD	CH	CA	
Accessory Structures and Uses								
Accessory dwelling unit (ADU), and/or junior accessory dwelling unit (JADU) on a lot developed with one residential dwelling unit	P	P	P	P	P	P	P	30.34.080
Accessory dwelling unit(s) (ADU) on a lot developed with more than one residential dwelling unit	P	P	P	P	P	P	P	30.34.080
Accessory uses	P	P	P	P	P	P	P	
Antennas (pole type) and flagpoles	P	P	P	P	P	P	P	
Carts (freestanding, non-motorized, portable type)	P	P	P	P		P	P	30.34.040
Dish antennas	P	P	P	P	P	P	P	30.34.050
Home occupations	P	P	P	P		P		30.45
Home-sharing	P	P	P	P	P	P	P	5.56
Reverse vending machines	P	P	P	P		P	P	30.12.040
Signs	P	P	P	P	P	P	P	30.33
Solar energy equipment	P	P	P	P	P	P	P	30.30.050
Institutional Uses								
Cultural arts centers			P	P		P		
Hospitals			P			P		
Museums		P		P			P	
Places of worship	P	P	P	C		P		
Schools, physical instruction	P	P	P	P		P		
Schools, private	C	C	C	C		C		
Schools, private specialized education and training	A	P	P	C		P		
Light Industrial Uses								
Backlots/outdoor facilities—Production			C			C		
Broadcasting studios and indoor support facilities—Production		P	P	P(3)		P		
Medical and dental laboratories		P	P	P(3)		P		
Soundstages—Production			P			P		
Utility and transmission facilities	C	C	C	C	C	C	C	
Miscellaneous Uses								
Non-emergency heliports			C			C		
Parking lots or structures	P	P	P	P	P	P	P	30.32 30.51.020
Office Uses								

LAND USE (1)(2)	PERMIT REQUIREMENT BY ZONE							See Standards in Chapter or Section
	C1	C2	C3	CR	CPD	CH	CA	
Contractors office and/or storage, temporary	T	T	T	T	T	T	T	
Contractors office	P	P	P	P	P	P		
Medical and dental offices	P	P	P	P(3)	P	P	P	
Office	P	P	P	P(3)	P	P	P	
Office, consumer services			P			P	P	
Veterinary offices, including hospitalization services	P	P	P	P		P		
Recreational Uses								
Arcade establishment			C			C	C	
Billiard establishments		P	P			P	P	
Children's indoor play areas		P	P	P		P		
Community gardens	P	P	P	P	P	P		30.34.045
Cyber-café establishments			P			P	A	
Gyms and health clubs		P	P	C		P	P	
Indoor recreation center	P	P	P	P		P		
Outdoor commercial recreation			C			C		
Private clubs and lodges	C	C	P	C		P		
Public dances	P	P	P	P		P	P	
Taverns	C	C	C	C		C	C	
Theaters		C	P	C		P		
Residential Uses								
Domestic violence shelters	P	P	P	P	P	P		
Emergency shelter		C	C			C		
Residential congregate living, limited subject to the provisions of one residential dwelling per lot in the R-1250 zone	P	P	P	P	P	P		
Residential congregate living, medical	A	P	P			P		
Residential congregate living, non-medical, subject to the provisions of the R-1250 zone and provided further that ground floor level is occupied with permitted commercial uses	P	P	P			P		
Residential congregate living, non-medical, at the ground floor level subject to the provisions of the R-1250 zone	A	A	A			A		
Multiple residential dwellings subject to the provisions of the R-1250 zone and provided further that the ground floor level is occupied with permitted commercial uses	P	P	P	P		P		

LAND USE (1)(2)	PERMIT REQUIREMENT BY ZONE							See Standards in Chapter or Section
	C1	C2	C3	CR	CPD	CH	CA	
Multiple residential dwellings with dwelling units at the ground floor level subject to provisions of the R-1250 zone	C	C	C			C		
One residential dwelling per lot subject to the provisions of the R-1250 zone	P	P	P	P	P	P		
Senior housing subject to the provisions of the R-1250 zone and provided further that the ground floor level is occupied with permitted commercial uses	P	P	P	P		P		
Senior housing at the ground floor level subject to the provision of the R-1250 zone	C	C	C	C		C		
Retail Uses								
Alcoholic beverage sales	A(4)	A(4)	A(4)	A(4)		A(4)	A(4)	
Automobile supply store		P	P	P		P	P	
Banquet halls		C	C	C		C		
Christmas tree sales lots, when maintained between November 1st and January 9th	T	T	T	T		T		5.36
Firearms, weapon sales		P	P	P		P		
Hardware stores	P	P	P	P		P	P	
Jewelry stores	P	P	P	P		P	P	
Liquor stores	A	A	A	A		A	A	
Nurseries and garden supplies	P	P	P	P		P		
Paint and wallpaper stores	P	P	P	P		P	P	
Pawnshops			P			P		
Pharmacy	P	P	P	P		P	P	
Pumpkin sales lots, when maintained between October 15th and November 1st	T	T	T	T		T		5.36
Restaurant, counter service with limited seating	P	P	P	P		P	P	
Restaurants, fast food	A	P	P	A		P	P	
Restaurants, full service	P	P	P	P		P	P	
Retail stores, general merchandise	P	P	P	P		P	P	
Spas and swimming pools, sales and service	P	P	P	P		P		
Supermarkets	P	P	P	P		P	P	
Vehicle sales, leasing and rental agencies			P			P	P	30.34.160
Service Uses								
Ambulance services	P	P	P	P		P	P	
Banks and financial institutions	P	P	P	P		P	P	
Business support services	P	P	P	P(3)		P	P	

LAND USE (1)(2)	PERMIT REQUIREMENT BY ZONE							See Standards in Chapter or Section
	C1	C2	C3	CR	CPD	CH	CA	
Car washes, full or self service		P	P			P	P	30.34.030
Day care centers	P	P	P	P	P	P	P	
Gas station	C	P	P	C		P	P	30.34.020
Heating and air conditioning sales and service (HVAC)			P			P		30.34.070
Hotels and motels		P	P	P(3)		P		
Massage establishment	C	C	C	C		C	C	5.64
Mortuaries and funeral homes			P			P		
Personal services	P	P	P	P		P	P	
Pet grooming	P	P	P	P		P		
Repair and maintenance, consumer products	P	P	P	P		P	P	
Tire stores			P			P	P	30.34.140
Vehicle repair garage			P			P	P	30.34.150
Wireless telecommunications facilities	W	W	W	W	W	W	W	30.48

Key to Permit Requirements	Symbol	See Chapter
Permitted use	P	
Administrative use—Administrative use permit required	A	30.49
Conditional use—Conditional use permit required	C	30.42
Temporary use	T	
Wireless telecommunications facilities permit required	W	30.48
Use not allowed		

Notes:

(1) See Section 30.03.010 regarding uses not listed.

(2) See Chapter 30.70 for definitions of the land uses.

(3) Permitted above the first floor level only.

(4) An Administrative Use Permit (AUP) is not required for supermarkets with 20,000 sq. ft. of floor area or greater.

SECTION 6. Section 30.14.020 of the Glendale Municipal Code, 1995 is hereby amended to read as follows:

30.14.020 Mixed use district land uses and permit requirements.

A. Permitted Primary Uses and Structures. No building, structure or land shall be used and no building, structure or use in the mixed-use zoning districts shall be erected, structurally altered, enlarged or established except the following permitted uses, buildings and structures identified with a "P" in Table 30.14-A.

B. Conditional Uses and Structures. The following uses and structures identified with a "C" in Table 30.14-A may be permitted in the mixed-use zoning districts subject to approval of a conditional use permit (Chapter 30.42). The development standards of this zone shall apply except as otherwise provided herein.

C. Administrative Uses and Structures. The following uses and structures identified with an "A" in Table 30.14-A may be permitted in the commercial zoning districts subject to approval of an administrative use permit (Chapter 30.49). The development standards of this zone shall apply except as otherwise provided herein.

D. Temporary Uses. Temporary uses (identified with a "T" in Table 30.14-A), allowed subject to approval and compliance with all applicable provisions of this Zoning Code.

E. Permitted Accessory Uses and Structures. Accessory uses, buildings and structures shall be permitted in zones identified with a "P" in Table 30.14-A.

F. Wireless Telecommunications Facilities. Wireless telecommunications facilities, identified with a "W" in Table 30.14-A may be permitted subject to the approval of a wireless telecommunications facility permit as set forth in Chapter 30.48 of this code.

G. Standards for Specific Uses. Where the last column in the following tables ("See Standards in Section or Chapter") includes a section number, the regulations in the referenced section apply to the use; however, provisions in other sections of this Zoning Code may apply as well.

Table 30.14-A

MIXED USE ZONING DISTRICTS AND PERMIT REQUIREMENTS

LAND USE (1)(2)	PERMIT REQUIREMENT BY ZONE			See Standards in Section or Chapter
	IMU	IMU-R	SFMU	
Accessory Buildings, Structures and Uses				
Accessory dwelling unit (ADU), and/or junior accessory dwelling unit (JADU) on a lot developed with one residential dwelling unit		P	P	30.34.080
Accessory dwelling unit(s) (ADU) on a lot developed with more than one residential dwelling unit		P	P	30.34.080
Accessory buildings and structures		P	P	
Accessory uses	P	P	P	

LAND USE (1)(2)	PERMIT REQUIREMENT BY ZONE			See Standards in Section or Chapter
	IMU	IMU-R	SFMU	
Antennas (pole type)	P	P	P	
Carts (freestanding, non-motorized, portable type)	P	P	P	30.34.040
Dish antennas	P	P	P	30.34.050
Home occupation		P	P	30.45
Home-sharing	P	P	P	5.110
Reverse vending machines	P	P	P	30.14.040
Signs	P	P	P	30.33
Solar energy equipment	P	P	P	30.30.050
Institutional Uses				
Places of worship	C	C	C	
Schools, physical instruction	P	P	P	
Schools, private	C	C	C	
Schools, private specialized education and training	P	P	P	
Recreation				
Community gardens	P	P	P	30.34.045
Gyms and health clubs	C	C	C	
Indoor recreation centers	C	C	C	
Nightclubs	C			
Outdoor commercial recreation	C	C	C	
Private clubs and lodges	C	C	C	
Public dances	P	P	P	
Taverns	C	C	C	
Theaters	C	C	C	
Manufacturing and Processing				
Backlots/outdoor facilities—Production	P	C	C	
Broadcasting studios and indoor support facilities—Production	P	P	P	
Heavy manufacturing	P	P		
Laundries and dry-cleaning plants	P	P(4)		
Light manufacturing	P	P	P(3)(4)	
Printing, publishing, and lithographic services	P	P(4)	P(3)(4)	
Research and development	P	P	P(4)	
Soundstages—Production	P	P	C	
Warehousing	P	P	P(4)	
Wholesaling, including wholesaling of alcoholic beverages	P	P	P(4)	
Residential Uses				
Domestic violence shelter	P	P	P	
Conversion of a live/work unit to entirely residential or entirely business use	C	C	C	
Emergency shelter	P			

LAND USE (1)(2)	PERMIT REQUIREMENT BY ZONE			See Standards in Section or Chapter
	IMU	IMU-R	SFMU	
Multiple residential dwelling units		A	P(5)	
Residential congregate living, limited			P	
Residential congregate living, medical		A	A	
Residential congregate living, non-medical		A	A	
Senior housing		C	P(5)	
Mixed-Use Developments				
Live/work units	A	A	P(6)	30.34.090
Live/work units with conditionally permitted uses	C	C	C(6)	30.34.090
Mixed-use development provided that all uses are permitted in zone which the project is located			P(6)	30.34.100
Mixed-use development where at least one use is conditionally permitted	C(8)	C	C	30.34.100
Retail Trade Uses				
Alcoholic beverage sales	A(9)	A(9)	A(9)	
Automobile supply stores	P	P		
Banquet halls	C	C		
Building materials, supplies, sales and service	P	P		
Christmas tree sales lots, when maintained between November 1st and January 9th	T	T		5.36
Firearms, weapon sales	P	P		
Hardware stores	P	P		
Jewelry stores	P	P	P	
Liquor stores	A	A	A	
Nurseries and garden supplies	P	P	P	
Paint and wallpaper stores	P	P		
Pharmacy	P	P	P	
Pumpkin sales lots, when maintained between October 15th and November 1st	T	T		5.36
Restaurant, counter service with limited seating	P	P	P	
Restaurants, fast food	P	P	P	
Restaurants, full service	P	P	P	
Retail stores, general merchandise	P	P	P	
Spas and swimming pools, sales and service	P	P		
Supermarkets	P	P	P	
Vehicle sales, leasing and rental agencies, including new and used automobiles, motorcycles, light trucks, recreational vehicles and boats	P	P		30.34.160
Vehicle sales, leasing and rental agencies, including new and used automobiles, motorcycles, light trucks, recreational vehicles and boats existing prior to September 12, 2006,			P	30.34.160

LAND USE (1)(2)	PERMIT REQUIREMENT BY ZONE			See Standards in Section or Chapter
	IMU	IMU-R	SFMU	
including a one-time expansion on the same lot of up to 20% of floor area				
Expansion of vehicle sales, leasing and rental agencies, including new and used automobiles, motorcycles, light trucks, recreational vehicles and boats existing prior to September 12, 2006, when proposed expansion is on the same lot as the existing facility and is greater than 20% of the floor area existing prior to September 12, 2006, or for any new facilities on separate or non-contiguous lots			C	30.34.160
Service Uses				
Ambulance services	P	P		
Banks and financial institutions	P	P	P	
Body shops and painting booths	P	P(4)		30.34.150
Business support services	P	P	P	
Car washes (full or self service)	P	P		30.34.030
Day care centers	P	P	A	
Equipment rental yards	P	P		
Gas stations	P	P	C	30.34.020
Heating and air conditioning sales and service (HVAC)	P	P		30.34.070
Hotel and motels	C	C	C	
Kennel, animal boarding and daycare	P(10)	P(10)		
Massage establishment	C	C	C	5.64
Medical and dental laboratories	P	P	P	
Mortuaries and funeral homes	A	A		
Moving and storage services	P	P		
Pawnshops	P	P	P	
Personal services	P	P	P	
Pet grooming	P	P		
Repair and maintenance, consumer products	P	P(4)	P(3)(4)(11)	
Storage, personal facility	P			
Storage, outdoor facility	P			
Tire stores	P	P		30.34.140
Towing services and impound yards	C	C		30.34.145
Vehicle repair garages	P	P(4)		30.34.150
Office Uses				
Contractor's office and/or storage, temporary	T	T		
Medical and dental offices	P	P	P	
Offices	P	P	P	
Office, consumer services	P	P	C	
Veterinary offices, including hospitalization services	P	P		

LAND USE (1)(2)	PERMIT REQUIREMENT BY ZONE			See Standards in Section or Chapter
	IMU	IMU-R	SFMU	
Transportation and Communications Uses				
Parking lot/structure facilities	P	P	C	30.32, 30.51.020
Utility and transmission facilities	C	C	C	
Wireless telecommunications facilities	W	W	W	30.48

Key to Permit Requirements	Symbol	See Chapter
Permitted use	P	
Administrative use—Administrative use permit required	A	30.49
Conditional use—Conditional use permit required	C	30.42
Temporary use	T	
Wireless telecommunications facilities permit required	W	30.48
Use not allowed		

Notes:

(1) See Section 30.03.010 regarding uses not listed.

(2) See Chapter 30.70 for definitions of the land uses.

(3) If gross floor area of the building is 10,000 sq. ft. or less and use is indoors; if greater than 10,000 sq. ft. and/or use is outdoors, a conditional use permit is required.

(4) Requires a conditional use permit when combined in a mixed-use development which includes residential.

(5) When fronting San Fernando Road, Broadway, or Colorado Street, only allowed as mixed-use projects with commercial uses located along the street frontage as required in Section 30.34.100.

(6) For lots having frontage along San Fernando Road, Broadway, and Colorado Street, manufacturing and processing uses shall not be on the ground floor fronting these streets.

(7) No drive-thru facilities permitted.

(8) The only dwelling units permitted are live/work units.

(9) Supermarkets only require an Administrative Use Permit for on-site consumption of alcoholic beverages. An Administrative Use Permit is not required for wholesaling.

(10) Not to be located nearer than 200 feet to the R1, R1R, ROS, R-3050, R-2250, R-1650 and R-1250 zones if use includes outdoor facilities.

(11) For upholstery services it shall include furniture only, no vehicles.

SECTION 7. Section 30.15.020 of the Glendale Municipal Code, 1995 is hereby amended to read as follows:

30.15.020 Special purpose district land uses and permit requirements.

A. Permitted Primary Uses and Structures. No building, structure or land shall be used and no building, structure or use in the special purpose zoning districts shall be erected, structurally altered, enlarged, or established except the following permitted uses, buildings and structures identified with a "P" in Table 30.15-A.

B. Conditional Uses and Structures. The following uses and structures identified with a "C" in Table 30.15-A may be permitted in the special purpose zoning districts subject to approval of a conditional use permit (Chapter 30.42). The development standards of this zone shall apply except as otherwise provided herein.

C. Administrative Uses and Structures. The following uses and structures identified with an "A" in Table 30.15-A may be permitted in the special purpose zoning districts subject to approval of an administrative use permit (Chapter 30.49). The development standards of this zone shall apply except as otherwise provided herein.

D. Temporary Uses. Temporary uses (identified with a "T" in Table 30.15-A), allowed subject to approval and compliance with all applicable provisions of this Zoning Code.

E. Permitted Accessory Uses and Structures. Accessory uses, buildings and structures shall be permitted in zones identified with a "P" in Table 30.15-A.

F. Wireless Telecommunications Facilities. Wireless telecommunications facilities, identified with a "W" in Table 30.15-A, may be permitted subject to the approval of a wireless telecommunications facility permit as set forth in Chapter 30.48 of this code.

G. Standards for Specific Uses. Where the last column in the following tables ("See Standards in Section or Chapter") includes a section number, the regulations in the referenced section apply to the use; however, provisions in other sections of this Zoning Code may apply as well.

I. Uses Not Listed. In the CE and CEM zones only, land uses that are not listed on Table 30.15-A, or are not shown in a particular zoning district are not allowed, except where other uses which the directory of community development determines to be similar in nature, function and operation to listed permitted primary uses within these zones.

Table 30.15-A

SPECIAL PURPOSE DISTRICTS AND PERMIT REQUIREMENTS

LAND USE (1)(2)	PERMIT REQUIREMENT BY ZONE				See Standards in Section or Chapter
	CE	CEM	MS	SR	
Accessory Buildings, Structures and Uses					

LAND USE (1)(2)	PERMIT REQUIREMENT BY ZONE				See Standards in Section or Chapter
	CE	CEM	MS	SR	
Accessory dwelling unit (ADU), and/or junior accessory dwelling unit (JADU) on a lot developed with one residential dwelling unit			P		30.34.080
Accessory dwelling unit(s) (ADU), on a lot developed with more than one residential dwelling unit			P		30.34.080
Accessory use	P	P	P	P	
Accessory living quarters or guest house not to exceed an aggregate area of 500 sq. ft. of floor area			P		
Antennas (pole type) and flagpoles	P	P	P	P	
Auditoriums		P	P		
Caretaker's residences	P	P	P	P	
Carts (freestanding, nonmotorized, portable type)			P	P	30.34.040
Dish antennas	P		P	P	30.32.050
Home occupations			P		
Home-sharing			P		5.56
Manufacturing of containers for caskets, remains and flowers		P			
Mobile medical trailers, temporary			T(5)		
Museums		P			
Nurseries and garden supplies		P			
Reverse vending machines			P		30.12.040
Signs	P	P	P	P	30.33
Solar energy equipment	P	P	P	P	30.30.050
Agriculture, Open Space, and Resources					
Apiaries				P	
Open space/conservation areas				P	
Education, Public Assembly, Recreation—General					
Amphitheaters				P	
Aquariums				P	
Arboretums and botanical gardens				P	
Auditoriums				P	
Aviaries				P	
Bandstands				P	

LAND USE (1)(2)	PERMIT REQUIREMENT BY ZONE				See Standards in Section or Chapter
	CE	CEM	MS	SR	
Community gardens			P	P	
Golf courses, country clubs, driving ranges and related facilities				P	
Libraries				P	
Local fairs				P	
Museums				P	
Observatories				P	
Parks and playgrounds, private			P	P	
Places of worship			P	P(4)	
Public dances				P	
Recreational camps				P	
Riding academies or stables				P(3)	
Stables, including boarding of horses, sale or exchange of horses and horse rentals	P				
Swimming pools				P	
Education, Public Assembly, Recreation Within a Public Park					
Amphitheaters				P	
Aquariums				P	
Arboretums and botanical gardens				P	
Auditoriums				P	
Aviaries				P	
Bandstands				P	
Community center				P	
Community gardens				P	30.34.045
Convention centers				P	
Day care				A	
Golf courses, country clubs, driving ranges and related facilities				P	
Gymnasiums				P	
Libraries				P	
Local fairs				P	
Museums				P	
Observatories				P	
Parks and playgrounds, public				P	
Public dances				P	

LAND USE (1)(2)	PERMIT REQUIREMENT BY ZONE				See Standards in Section or Chapter
	CE	CEM	MS	SR	
Recreational camps				P	
Riding academies or stables				P(3)	
Swimming pools				P	
Institutional Uses					
Cultural arts centers			P		
Hospitals			P		
Museums			P		
Schools, physical instruction			C		
Schools, private			C		
Schools, private specialized education and training			C		
Light Industrial Uses					
Broadcasting studios and indoor support facilities—Productions			P		
Medical and dental laboratories			P		
Miscellaneous Uses					
Non-emergency heliport			P		
Parking lots			P		
Parking structures, subject to PS overlay required setback standards			P		30.23, 30.32.110
Office Uses					
Contractor's office and/or storage, temporary	T		T	T	
Contractor's office			P		
Medical and dental offices			P		
Office			P		
Office, consumer services			P		
Recreational Uses					
Children indoor play areas			P		
Cyber-café establishments			P		
Gyms and health clubs			P		
Indoor recreation center			P		
Private clubs and lodges			P		
Residential Uses					
Domestic violence shelter			P		
Emergency shelter			P		

LAND USE (1)(2)	PERMIT REQUIREMENT BY ZONE				See Standards in Section or Chapter
	CE	CEM	MS	SR	
Multiple residential dwelling units subject to provisions of the R-2250 zone			P		
One residential dwelling per lot subject to provisions of the R-2250 zone			P		
Residential congregate care living, limited			P		
Residential congregate care living, medical			P		
Residential congregate care living, non-medical			P		
Senior housing			P		
Retail Uses					
Alcoholic beverage sales			A	A	
Christmas tree sales lots, when maintained between November 1st and January 9th	T		T		5.36
Jewelry stores			P		
Liquor stores			C		
Pharmacy			P		
Pumpkin sales lots, when maintained between October 15th and November 1st	T		T		5.36
Restaurant, counter service with limited seating			P		
Restaurants, fast food			P		
Restaurants, full service			P		
Retail stores, general merchandise			P		
Western retail and supply stores	P				
Service Uses					
Ambulance services			P		
Banks and financial institutions			P		
Business support services			P		
Cemeteries		P			
Day care centers			P		
Gas station			P		30.34.020
Hotels and motels			P		
Kennel and animal boarding	P			C	
Massage establishment			C		5.64
Mortuaries and funeral homes			P		
Personal services			P		
Repair and maintenance, consumer products			P		

LAND USE (1)(2)	PERMIT REQUIREMENT BY ZONE				See Standards in Section or Chapter
	CE	CEM	MS	SR	
Sanitary landfills and related recovery of materials				C	
Transportation and Communications Uses					
Utility and transmission facilities	C	C	C(6)	C	
Wireless telecommunication facilities	W	W	W	W	30.48

Key to Permit Requirements	Symbol	See Chapter
Permitted use	P	
Administrative use—Administrative use permit required	A	30.49
Conditional use—Conditional use permit required	C	30.42
Temporary use	T	
Wireless telecommunications facilities permit required	W	30.48
Use not allowed		

Notes:

(1) See Section 30.03.010 regarding uses not listed.

(2) See Chapter 30.70 for definitions of the land uses.

(3) Not to be located nearer than 1/2 mile to the R1, R1R, ROS, R-3050, R-2250, R-1650 and R-1250 zones on which there is no H overlay zone.

(4) Places of worship in the SR zone must have been in existence as of September 26, 2006.

(5) Temporary mobile medical trailers must be used on a hospital site and are limited to a period of 2 years.

(6) See Section 30.15.060 for additional standards.

SECTION 8. Section 30.16.020 of the Glendale Municipal Code, 1995 is hereby amended to read as follows:

30.16.020 TOD district land uses and permit requirements.

A. Permitted Primary Uses and Structures. No building, structure or land shall be used and no building, structure or use in the transit oriented development districts shall be erected, structurally altered, enlarged, or established except the following permitted uses, buildings and structures identified with a "P" in Table 30.16.020-A.

B. Conditional Uses and Structures. The following uses and structures identified with a "C" in Table 30.16.020-A may be permitted in the transit oriented development districts subject to approval of a conditional use permit (Chapter 30.42). The development standards of this zone shall apply except as otherwise provided herein.

C. Administrative Uses and Structures. The following uses and structures identified with an "A" in Table 30.16.020-A may be permitted in the transit oriented development districts subject to approval of an administrative use permit (Chapter 30.49). The development standards of this zone shall apply except as otherwise provided herein.

D. Temporary Uses. Temporary uses (identified with a "T" in Table 30.16.020-A), allowed subject to approval and compliance with all applicable provisions of this Zoning Code.

E. Permitted Accessory Uses and Structures. Accessory uses, buildings and structures shall be permitted in zones identified with a "P" in Table 30.16.020-A.

F. Wireless Telecommunications Facilities. Wireless telecommunications facilities, identified with a "W" in Table 30.16-A, may be permitted subject to the approval of a wireless telecommunications facility permit as set forth in Chapter 30.48 of this code.

G. Standards for Specific Uses. Where the last column in the following tables ("See Standards in Section or Chapter") includes a section number, the regulations in the referenced section apply to the use; however, provisions in other sections of this Zoning Code may apply as well.

Table 30.16.020-A

TRANSIT ORIENTED DEVELOPMENT DISTRICTS AND PERMIT REQUIREMENTS

LAND USE (1)(2)	PERMIT REQUIREMENT BY ZONE		See Standards in Section or Chapter
	TOD I	TOD II	
Accessory Buildings, Structures and Uses			
Accessory dwelling unit (ADU), and/or junior accessory dwelling unit (JADU) on a lot developed with one residential dwelling unit	P	P	30.34.080
Accessory dwelling unit (ADU), on a lot developed with one residential dwelling unit	P	P	30.34.080
Accessory uses	P	P	
Accessory buildings and structures	P	P	
Antennas (pole type) and flagpoles	P	P	
Carts (freestanding, non-motorized, portable type)	P	P	30.34.040
Dish antennas	P	P	30.34.050

LAND USE (1)(2)	PERMIT REQUIREMENT BY ZONE		See Standards in Section or Chapter
	TOD I	TOD II	
Home occupation	P	P	30.45
Home-sharing	P	P	5.110
Reverse vending machines	P	P	30.12.040
Signs	P	P	30.33
Solar energy equipment	P	P	30.30.050
Institutional Uses			
Hospitals		P	
Places of worship	C		
Schools, physical instruction	P	C	
Schools, private	C		
Schools, private specialized education, and training	P	C	
Recreation			
Arcade establishment	P	P	
Billiard establishments	P		
Community gardens	P		30.34.045
Gyms and health clubs	P		
Indoor recreation center	C		
Outdoor commercial recreation	C		
Private clubs and lodges	C		
Public dances	P		
Taverns	C		
Theaters	P	P	
Manufacturing and Processing			
Backlots/outdoor facilities – production	C		
Broadcasting studios and indoor support facilities – production	P		
Heavy manufacturing, if existing prior to October 10, 2023	P	P	
Laundries and dry cleaning plants, if existing prior to October 10, 2023	P	P	
Light manufacturing	P(3)(4)		
Medical and dental laboratories	P	P	
Printing, publishing, and lithographic services	P(3)(4)		
Research and development	P(4)		

LAND USE (1)(2)	PERMIT REQUIREMENT BY ZONE		See Standards in Section or Chapter
	TOD I	TOD II	
Soundstages – production	P		
Warehousing	P		
Wholesaling, including wholesaling of alcoholic beverages	P		
Residential Uses			
Domestic violence shelters	P	P	
Conversion of a live/work unit to entirely residential or entirely business use	A		
Emergency shelter	C		
Multiple residential dwelling units	P(5)	P(5)	
Residential congregate living, Limited (subject to the provisions of one residential dwelling per lot)	P	P	
Residential congregate living, Medical	P	P	
Residential congregate living, Non-medical	P(5)	P(5)	
One residential dwelling per lot subject to the provisions of the R-1250 zone	P		
Senior housing	P(5)	P(5)	
Mixed-Use Developments			
Live/work units	P(6)		30.34.090
Live/work units with conditionally permitted uses	C		30.34.090
Mixed-use development provided that all uses are permitted in zone which the project is located	P	P	
Mixed-use development where at least one use is conditionally permitted	C	C	
Retail Trade Uses			
Alcoholic beverage sales	A(8)	A(8)	
Automobile supply store	P		
Banquet halls	C		
Building materials, supplies, sales and service	P		
Christmas tree sales lots, when maintained between November 1st and January 9th	T	T	5.36
Jewelry stores	P		
Liquor stores	A		

LAND USE (1)(2)	PERMIT REQUIREMENT BY ZONE		See Standards in Section or Chapter
	TOD I	TOD II	
Nurseries and garden supplies	P		
Paint and wallpaper stores	P		
Pawnshops, if existing prior to October 10, 2023	P		
Pharmacy	P	P	
Pumpkin sales lots, when maintained between October 15th and November 1st	T	T	5.36
Restaurant, counter service with limited seating	P	P	
Restaurants, fast food	P	P	
Restaurants, full service	P	P	
Retail stores, general merchandise	P	P	
Supermarkets	P	P	
Vehicle sales, leasing and rental agencies, including new and used automobiles, motorcycles, light trucks, recreational vehicles and boats existing prior to October 10, 2023, including a one-time expansion on the same lot of up to 20 percent of floor area.	P		30.34.160
Expansion of vehicle sales, leasing and rental agencies, including new and used automobiles, motorcycles, light trucks, recreational vehicles and boats existing prior to September 12, 2006, when proposed expansion is on the same lot as the existing facility and is greater than 20 percent of the floor area existing prior to September 12, 2006, or for any new facilities on separate or non-contiguous lots.	C		30.34.160
Service Uses			
Banks and financial institutions	P		
Body shops and painting booths, if existing prior to October 10, 2023			30.34.150
Business support services	P		
Day care centers	A	A	
Equipment rental yards, if existing prior to October 10, 2023	P		
Gas station	P		30.34.020
Heating and air conditioning sales and service (HVAC), if existing prior to October 10, 2023	P		30.34.070

LAND USE (1)(2)	PERMIT REQUIREMENT BY ZONE		See Standards in Section or Chapter
	TOD I	TOD II	
Hotels and motels	P		
Kennel, animal boarding and daycare	P(9)		
Massage establishment	C		5.64
Medical and dental laboratories	P	P	
Mortuaries and funeral homes	A		
Moving and storage services, if existing prior to October 10, 2023	P		
Personal Services	P	P	
Pet grooming	P		
Repair and maintenance, consumer products	P(4)		
Tire stores, if existing prior to October 10, 2023			30.34.140
Vehicle repair garage, if existing prior to October 10, 2023	P		30.34.150
Office Uses			
Contractors office and/or storage, temporary	T	T	
Medical and dental offices	P	P	
Office	P	P	
Office, consumer services	C		
Veterinary offices, including hospitalization services	P		
Transportation and Communications Uses			
Parking lot/structure facilities	C	P	30.32, 30.51.020
Utility and transmission facilities	C	C	
Wireless telecommunications facilities	W	W	30.48

Key to Permit Requirements	Symbol	See Chapter
Permitted use	P	
Administrative use—Administrative use permit required	A	30.49
Conditional use—Conditional use permit required	C	30.42
Temporary use	T	
Wireless telecommunications facilities permit required	W	30.48
Use not allowed		

Notes:

(1) See Section 30.03.010 regarding uses not listed.

(2) See Chapter 30.70 for definitions of the land uses.

(3) If gross floor area of the building is 10,000 sq. ft. or less and use is indoors; if greater than 10,000 sq. ft. and/or use is outdoors, a conditional use permit is required.

(4) Requires a conditional use permit when combined in a mixed-use development which includes residential.

(5) When fronting San Fernando Road, Central Avenue, or Los Feliz Road, only allowed as mixed-use projects with commercial uses located along the street frontage as required in Section 30.34.100.

(6) For lots having frontage along San Fernando Road, Central Avenue, or Los Feliz Road, manufacturing and processing uses shall not be on the ground floor fronting these streets.

(7) No drive-thru facilities permitted.

(8) Supermarkets only require an Administrative Use Permit for on-site consumption of alcoholic beverages. An Administrative Use Permit is not required for wholesaling.

(9) Not to be located nearer than 200 feet to the R1, R1R, ROS, R-3050, R-2250, R16-50 and R-1250 zones if use includes outdoor facilities.

SECTION 9. Section 30.34.080 of the Glendale Municipal Code, 1995 is hereby amended to read as follows:

30.34.080 Accessory dwelling units and junior accessory dwelling units.

A. Intent and Purpose. This section is intended to provide for the creation of accessory dwelling units and junior accessory dwelling units in a manner that is ministerial and nondiscretionary consistent with state law.

1. Accessory dwelling units and/or junior accessory dwelling units, as applicable, are located on lots developed or proposed with dwelling units in areas zoned for single-family and multi-family residential (including mixed-use residential) uses and can provide an important source of affordable housing. For purposes of this section, the existing one residential dwelling on property zoned single-family residential or property with an existing single-family dwelling on it shall also be known as the primary dwelling.

2. Accessory dwelling units and junior accessory dwelling units, when appropriately sized and located, have little impact on neighborhood quality of life or upon real property that is listed, or identified on a historic survey as potentially eligible on the National Register of Historic Places, California Register of Historical Resources, Glendale Register of Historic Resources, and in a city of Glendale designated or nominated Historic District.

3. Establishing reasonable regulations for accessory dwelling units and junior accessory dwelling units is an appropriate mechanism to properly balance the need

for additional affordable housing with the need to maintain existing architectural character, community character and neighborhood quality of life.

4. Accessory dwelling units and junior accessory dwelling units are not considered for purposes of general plan density calculation.

5. Accessory dwelling unit and junior accessory dwelling unit permits are necessary to enable tracking of affordable housing and to ensure review and compliance with zoning, fire, and life safety standards contained in state and local law.

B. Applicability. This section shall apply to all zones that allow single-family or multi-family residential use(s).

C. Definitions. The following definitions shall apply to the requirements of this section any term not defined herein shall have the same meaning as defined in Chapter 30.70:

"Accessory dwelling unit" means an attached or a detached residential dwelling unit that provides complete independent living facilities for one or more persons and is located on a lot with a proposed or existing primary residence. It shall include permanent provisions for living, sleeping eating, cooking, and sanitation on the same parcel as the single-family or multi-family dwelling is or will be situated. An accessory dwelling unit also includes the following:

a. An efficiency unit as defined in Section 17958.1 of the Health and Safety Code.

b. A manufactured home, as defined in Section 18007 of the Health and Safety Code.

"Junior accessory dwelling unit" means a unit that is no more than 500 square feet in size and contained entirely within a single-family residence, and shall in no event be contained within a detached accessory building or structure. For purposes of this definition, "contained entirely within a single-family residence" means enclosed uses within the residence, such as attached garages. A junior accessory dwelling unit may include separate sanitation facilities, or may share sanitation facilities with the existing structure.

"Living area" means the interior habitable area of a dwelling unit, including basements and attics, but does not include a garage or any accessory structure.

"Livable space" means a space in a dwelling intended for human habitation, including living, sleeping, eating, cooking, or sanitation.

"Nonconforming zoning condition" means a physical improvement on a property that does not conform with current zoning standards.

"Objective standards" means standards that involve no personal or subjective judgment by a public official and are uniformly verifiable by reference to an external and uniform benchmark or criterion available and knowable by both the development applicant or proponent and the public official prior to submittal.

"Passageway" means a pathway that is unobstructed clear to the sky and extends from a street to one entrance of the accessory dwelling unit.

"Proposed dwelling" means a dwelling that is the subject of a permit application and that meets the requirements for permitting.

"Public transit" means a location, including, but not limited to, a bus stop or train station, where the public may access buses, trains, subways, and other forms of transportation that charge set fares, run on fixed routes, and are available to the public.

"Tandem parking" means a parking configuration where two or more automobiles are parked on a driveway or in any other location on a lot, lined up behind one another.

D. General Provisions.

1. Accessory dwelling units shall be permitted in any zone that allows residential uses and is developed with residential uses or is proposed to be developed with a residential use. Where two or more contiguous lots in the same ownership are developed as one building site with residential dwellings and where an accessory dwelling unit is proposed, a lot line adjustment or parcel map, as applicable, shall be required to create one lot by relocating or eliminating existing lot lines.

2. Junior accessory dwelling units shall only be permitted on lots developed with one residential dwelling or proposed to be developed with one residential dwelling. Where two or more contiguous lots in the same ownership are developed as one building site with residential dwellings and where a junior accessory dwelling unit is proposed, a lot line adjustment or parcel map shall, as applicable, be required to create one lot by relocating or eliminating existing lot lines.

3. Accessory dwelling units and junior accessory dwelling units are subject to the underlying zoning development standards for setback, floor area ratio, lot coverage, open space and landscaping that are applicable to the primary residential dwelling, or dwellings, except as otherwise set forth in this section. These prohibitions do not apply when compliance with this section precludes development of an accessory dwelling unit or junior accessory dwelling unit that qualifies under subsection (E)(4) or (F)(2) below. The underlying zoning development standards for floor area ratio, lot coverage, open space and landscaping shall not include up to 800 square feet of any accessory dwelling unit area constructed under the provisions of this section.

4. No additional setback shall be required for an existing living area or accessory building or a building constructed in the same location and to the same dimensions as an existing building that is converted to an accessory dwelling unit, and a setback of no more than four feet from an interior lot line shall be required for an accessory dwelling unit that is not converted from an existing building constructed in the same locations and to the same dimensions as an existing building.

5. An accessory dwelling unit shall include:

    a. A bathroom.

    b. A kitchen.

    c. Independent access.

    d. Comply with building codes, including sufficient setbacks for fire.

    e. May not be smaller than identified in Section 17958.1 of the California Health and Safety Code.

    f. Must be served by utilities, including sewer, water and electric.

6. All new construction attached or detached accessory dwelling units shall have a maximum square footage as follows.

    a. Eight hundred fifty square feet; or

    b. One thousand square feet for an accessory dwelling unit that provides more than one bedroom.

7. All new construction accessory dwelling units attached to the existing or proposed primary dwelling shall not exceed 50% of the existing or proposed floor area of the primary dwelling, but in no event shall an accessory dwelling unit exceed the maximum square feet stated in subsection (D)(6) above. This prohibition does not apply when compliance with this section precludes development of an accessory dwelling unit that qualifies under (E)(4) below.

8. A junior accessory dwelling unit shall include:

    a. An efficiency kitchen, which shall include a sink and a cooking facility with appliances and a food preparation counter and storage cabinets that are of reasonable size in relation to the size of the junior accessory dwelling unit.

    b. Independent access.

    c. Comply with building codes, including sufficient setbacks for fire.

    d. May not be smaller than identified in Section 17958.1 of the California Health and Safety Code.

    e. Must be served by utilities, including sewer, water and electric.

    f. If the junior accessory dwelling unit does not include a separate bathroom, the junior accessory dwelling unit shall include a separate entrance from the main entrance to the structure, with an interior entry to the main living area.

9. A lot where only one residential dwelling unit exists may have either an accessory dwelling unit or an accessory living quarters, but not both. For the purposes of this section, other accessory buildings which are defined as "R" Occupancy per Chapter 3 of the California Building Code such as, a cabana, pool house, recreation room, workshop, studio, rumpus room and similar shall be considered accessory living quarters. An accessory living quarter may be converted to an accessory dwelling unit. Nothing herein shall prohibit the creation of a junior accessory dwelling unit on such a lot that contains an accessory living quarters.

10. In no case shall new construction of an accessory dwelling unit be located between the primary residential dwelling(s) and the street front and street side setback. Notwithstanding such prohibition, in cases where a lot has more than one street front (through lot), a new construction attached or detached accessory dwelling unit may be located between the street front setback and the side or rear façade of the primary residential dwelling(s). Further, no additional driveway shall be allowed from any street frontage. These prohibitions do not apply when compliance with this section precludes development of an accessory dwelling unit or junior accessory dwelling unit that qualifies under subsection (E)(4) or (F)(2)(b) below.

11. Any rental of an accessory dwelling unit created pursuant to this section shall be for

a term longer than 30 days.

12. Except as provided in Government Code Section 66341 or otherwise allowed by state or local law, an accessory dwelling unit cannot be sold separately from the residential dwelling(s). A junior accessory dwelling unit cannot be sold separately from the sale of the single-family residence under any circumstance.

13. Fire sprinklers shall be required for the accessory dwelling unit and/or junior accessory dwelling unit if fire sprinklers are or were required for the residential dwelling. The construction of an accessory dwelling unit shall not trigger a requirement for fire sprinklers to be installed in the existing single- or multi-family dwelling.

14. No passageway shall be required between an entrance of the accessory dwelling unit and the street right-of-way as defined in state law.

15. The property owner shall pay all sewer, water, school district, and other applicable fees.

16. Notwithstanding Chapter 4.10 and any development impact fee resolutions adopted thereunder:

    a. Any accessory dwelling unit under 750 square feet shall be exempt from any development impact fee, including, but not limited to, the parks and libraries development impact fee; and

    b. Any accessory dwelling unit of 750 square feet or greater shall be charged a parks and library development impact fee in an amount proportionally related to the square footage of the primary dwelling unit or the average square footage of the existing or proposed multi-family dwelling units, as applicable, not to exceed that amount set forth in the development impact fee resolution adopted pursuant to Chapter 4.10 of this code.

17. The property owner may install new or separate utility connections between the accessory dwelling unit(s) or junior accessory dwelling unit and the utility, and pay all applicable connection fees or capacity charges.

18. An accessory dwelling unit or junior accessory unit shall not be considered a new residential use for purposes of calculating connection fees or capacity charges for utilities, including water and sewer, unless the accessory dwelling unit or junior accessory dwelling unit is constructed with a new single-family dwelling.

19. When an accessory dwelling unit or junior accessory dwelling unit qualifies under subsection (E)(4) or (F)(2), installation of new or separate utility connections, including related connection fees or capacity charges, directly between the accessory dwelling unit or junior accessory dwelling unit shall not be required unless the accessory dwelling unit or junior accessory dwelling unit was constructed with a new single-family dwelling.

20. When an accessory dwelling unit or junior accessory dwelling unit does not qualify under subsection (E)(4) or (F)(2), installation of a new or separate utility connection directly between the accessory dwelling unit and the utility may be required. Consistent with California Government Code Section 66013, the connection may be

subject to a connection fee or capacity charge that shall be proportionate to the burden of the proposed accessory dwelling unit or junior accessory dwelling unit, based upon either it's square footage or the number of its drainage fixture unit (DFU) values, as defined in the Uniform Plumbing Code adopted and published by the International Association of Plumbing and Mechanical Officials, upon the water or sewer system. This fee or charge shall not exceed the reasonable cost of providing this service.

21. In addition to the above, the City shall comply with all accessory dwelling unit and junior accessory dwelling unit permitting and permit processing requirements, mandates, timelines, deadlines, restrictions, prohibitions and limitations contained in California Government Code Sections 66314, *et seq.,* including, but not limited to, Sections 66316 through 66317 and 66331 through 66332.

E. Additional Standards Specific Only to an Accessory Dwelling Unit and/or Junior Accessory Dwelling Unit Where Only One Residential Dwelling Unit Exists or is Proposed on a Lot. The following standards and criteria apply to accessory dwelling units and/or junior accessory dwelling units where only one residential dwelling unit exists or is proposed on a lot.

1. Except as otherwise set forth in this section, accessory dwelling units and junior accessory dwelling units are subject to all zoning development standards that apply in the underlying zone to the primary residential dwelling, including, but not limited to, setbacks, floor area ratio, lot coverage, landscaping, open space, and ungraded open space, except that no more than a minimum of four foot interior setbacks shall be required.

2. Notwithstanding the development standards for floor area ratio, lot coverage, and open space (when not required for minimum landscaping requirements) for the underlying zone, a new construction attached or detached accessory dwelling unit shall be permitted that provides four foot minimum interior setbacks and does not exceed the following height limitations:

    a. A height limit of 16 feet for a detached accessory dwelling unit on a lot with an existing or proposed single-family dwelling unit. In no case shall the accessory dwelling unit exceed two stories.

    b. A height limit of 18 feet for a detached accessory dwelling unit on a lot with an existing or proposed single-family dwelling unit that is within one-half (0.5) mile walking distance of a major transit stop or a high quality transit corridor, as those terms are defined in Section 21155 of the Public Resources Code. An additional two feet in height shall be permitted to accommodate a roof pitch on the accessory dwelling unit that is aligned with the roof pitch of the primary dwelling unit. In no case shall the accessory dwelling unit exceed two stories.

    c. A height of 25 feet or the height limitation of the underlying zoning district, whichever is lower, for an accessory dwelling unit that is attached to the primary dwelling. In no case shall the accessory dwelling unit exceed two stories.

3. For properties listed on the California Register of Historic Places, the Glendale Register of Historic Properties, any property in an adopted or nominated historic

district overlay zone, or any property identified as significant or potentially significant on a historic survey meeting the requirements of Public Resources Code Section 5024.1(g), any exterior changes to an existing property to create an accessory dwelling unit and/or a junior accessory dwelling unit shall not be visible from the public street or sidewalk right-of-way immediately adjacent to the property and shall not alter any defining historical characteristic unless compliance with this section precludes development of an accessory dwelling unit or junior accessory dwelling unit that qualifies under subsection (E)(4) below.

4. Notwithstanding subsection (E)(1) above:

   a. One accessory dwelling unit and one junior accessory dwelling unit shall be allowed when all of the following apply:

      i. The accessory dwelling unit or junior accessory dwelling unit shall be located within the proposed space of a single-family dwelling or existing space of a single-family dwelling, or the accessory dwelling unit shall be located within the existing space of an accessory building and may include an expansion of an accessory building not to exceed 150 square feet beyond the same physical dimensions as the existing accessory building. An expansion of an accessory dwelling unit beyond the physical dimensions of the existing accessory building shall be limited to accommodating ingress and egress;

      ii. The space has exterior access from the proposed or existing single-family dwelling;

      iii. For fire safety purposes, at least one of the existing interior setbacks has minimum of three feet; and

      iv. The junior accessory dwelling unit complies with all other junior accessory dwelling unit requirements outlined in this Ordinance.

   b. One detached new construction accessory dwelling unit shall be allowed subject to the following:

      i. A minimum four foot interior setback;

      ii. A maximum square footage of 800 square feet; and

      iii. A height limit as set forth in subsection (E)(2) above.

      An accessory dwelling unit constructed under subsection (E)(4)(b) above may be combined to also allow a junior accessory dwelling unit in the manner described in subsection (E)(4)(a) above, but only where one residential dwelling unit exists, or is proposed to be constructed.

5. Accessory dwelling units and junior accessory dwelling units that are new construction, or propose exterior modifications to an existing primary residence or to a permitted accessory building shall comply with the objective design standards set forth in subsection (G) below. These standards shall not apply to an accessory dwelling unit or junior accessory dwelling unit that qualifies under subsection (E)(4) above.

6. New construction accessory dwelling units shall not be permitted above a detached garage or carport.

F. Additional Standards Specific Only to Accessory Dwelling Units on Lots Developed with Existing or Proposed Multiple Residential Dwelling Units. The following standards and criteria apply to accessory dwelling units on lots developed with existing or proposed multiple residential dwelling units.

1. Except as otherwise set forth in this section, accessory dwelling units are subject to all zoning development standards that apply in the underlying zone, including, but not limited to, floor area ratio, lot coverage, landscaping, open space, and ungraded open space, except that no more than a minimum of four foot interior setbacks shall be required.

2. Notwithstanding subsection (F)(1) above, the applicant is entitled to build accessory dwelling units under either subsection (F)(2)(a) or (F)(2)(b) below, but not both:

   a. At least one accessory dwelling unit and up to 25% of the existing multi-family dwelling units shall be allowed within portions of existing multi family dwelling structures (excluding existing dwelling units) that are not used as livable space, including, but not limited to, storage rooms, boiler rooms, passageways, attics, basements, or garages, if each unit complies with state building standards for dwellings; or

   b. Multiple accessory dwelling units with minimum four foot interior setbacks shall be allowed. These accessory dwelling units may be attached or detached from each other and shall not exceed the number specified in subsection (F)(2)(b)(i) or (F)(2)(b)(ii), as applicable:

      i. On a lot with an existing multi-family dwelling, not more than eight detached accessory dwelling units shall be allowed. The number of accessory dwelling units allowable pursuant to this sub-section shall not exceed the number of existing units on the lot.

      ii. On a lot with a proposed multi-family dwelling, not more than two detached accessory dwelling units shall be allowed.

   c. The following height limitations shall apply for accessory dwelling units that qualify under subsection (F)(2)(b)(i) or (F)(2)(b)(ii) above:

      i. A height of 16 feet for a detached accessory dwelling unit on a lot with an existing or proposed multi-family dwelling unit. In no case shall the accessory dwelling unit exceed two stories.

      ii. A height of 18 feet for a detached accessory dwelling unit on a lot with an existing or proposed multi family dwelling unit that is within one-half (0.5) of one mile walking distance of a major transit stop or a high-quality transit corridor, as those terms are defined in Section 21155 of the Public Resources Code. An additional two feet in height shall be permitted to accommodate a roof pitch on the accessory dwelling unit(s) that is aligned with the roof pitch of the primary dwelling unit. In no case shall the accessory dwelling unit exceed two stories.

iii. A height of 18 feet for a detached accessory dwelling unit on a lot with an existing or proposed multi-family, multi-story dwelling. In no case shall the accessory dwelling unit exceed two stories.

3. Junior accessory dwelling units are prohibited on lots developed with existing multiple residential dwelling units.

4. For properties listed on the California Register of Historic Places, the Glendale Register of Historic Properties, any property in an adopted or nominated historic district overlay zone, or any property identified as significant or potentially significant on a historic survey meeting the requirements of Public Resources Code Section 5024.1(g), any exterior changes to an existing property to create accessory dwelling units shall not be visible from the public street or sidewalk right-of-way immediately adjacent to the property and shall not alter any defining historical characteristic unless compliance with this section precludes development of an accessory dwelling unit(s) that qualifies under subsection (F)(2) above.

5. Accessory dwelling units that are new construction, or that propose exterior modifications to an existing multi-family building or to a permitted accessory building shall comply with the objective design standards in subsection (G) below. These standards shall not apply to an accessory dwelling unit(s) that qualifies under subsection (F)(2) above.

6. New construction accessory dwelling units shall not be permitted above detached garages or carports.

G. Objective Design Standards for Accessory Dwelling Units. The following standards and criteria shall apply to accessory dwelling units, or portions thereof, that directly face the public realm, which for the purposes of this subsection shall include improved public streets, sidewalks, alleys, parks, and accessory dwelling units that include a second story. Accessory dwelling units that do not include a second story and/or are hidden from view from the public realm by primary or accessory buildings shall be exempt from these criteria. In accordance with Government Code Section 66323(b), these standards do not apply to the development of an accessory dwelling unit or junior accessory dwelling unit that qualifies under subsection (E)(4) or (F)(2) above. This section is not applicable to designated historic resources and potential historic resources, as defined in GMC 15.20.20, and/or contributors in designated or pending historic districts, as defined in GMC 30.25.015.

1. **Massing.**

   a. **Roof Form and Pitch.**

      i. The roof form of the accessory dwelling unit shall match the roof form of the existing primary residence or multi-family building.

      ii. For an existing primary residence or multi-family building with multiple roof forms, the roof of the accessory dwelling unit shall match at least one of the roof forms of the existing development. The accessory dwelling unit may have more than one roof form, so long as the selected roof forms match those of the existing primary residence or multi-family building.

iii. When the roof pitch of the existing primary residence or multi-family building has a pitch greater than 4:12, the roof pitch of the accessory dwelling unit is not required to match, so long as the accessory dwelling unit complies with the height requirements set forth in subsections (E)(2) and (F)(2)(b) above.

iv. Rooftop decks are prohibited on all attached or detached accessory dwelling units and junior accessory dwelling units, including both new construction and conversions.

v. When a parapet is incorporated into the design of the accessory dwelling unit or junior accessory dwelling unit, the parapet height shall not exceed 18 inches above the lowest point of the roof.

b. **Breaks in Building Volume.**

i. Each façade that directly faces the public realm shall have at least one change in plane with a minimum depth of 18 inches.

ii. Second-floor overhangs for the accessory dwelling unit shall be oriented towards the rear and side yard areas and shall not directly face the public realm.

2. **Design and Detailing.**

a. **Exterior Wall Cladding.**

i. Except as indicated in subsections (G)(2)(a)(vi) and (G)(2)(a)(vii) below, the accessory dwelling unit shall have a minimum of two wall cladding materials at any façade or portion thereof which directly faces the public realm.

ii. The use of stucco shall be limited to a maximum of 60% of the total exterior wall surface of any façade or portion thereof which directly faces the public realm.

iii. All cladding materials shall wrap exterior corners and either wrap the entire building or terminate at inside corners.

iv. Any of the following cladding materials may be used: wood or cementitious siding (e.g., lap siding, tongue-and-groove/interlocking boards, board-and-batten, shingle), stucco, brick, veneer brick, natural stone, and pre-cast stone.

v. If siding is applied solely at the base of the building (wainscoting), it shall extend from the lowest edge of the wall up to, at a minimum, the height of the lowest windowsill on that façade. If a façade is windowless, the siding at its base shall either match the height of any siding proposed at adjoining façades or, if none exists, shall not be greater than four-feet above the level of the adjoining grade.

vi. If the roof of the existing primary residence or multi-family building is clad with Spanish-tiles (one- or two- piece clay or concrete tiles with a curved profile), 100% of the exterior wall surfaces of the accessory dwelling unit shall be clad with stucco.

vii. If the existing primary residence or multi-family building is clad entirely with horizontal and/or shingle siding, 100% of exterior wall surfaces of the accessory dwelling unit directly facing the public realms shall be clad with horizontal and/or shingle siding.

b. **Roof Cladding.**

i. Pitched roofs on the accessory dwelling unit shall be clad with a material that matches the roof of the existing primary residence or multi-family building in terms of material, color, texture, dimensions, shape, and profiles.

ii. Flat roofs may be clad with any material permitted by the building code.

iii. If the flat-roofed portion of the existing primary residence or multi-family building has Spanish-tile (one- or two-piece clay or concrete tile with a curved profile) parapet caps, any flat-roof portion of the accessory dwelling unit shall have parapet caps that match the existing parapet caps of the existing primary residence or multi-family building in terms of material, color, texture, dimensions, shape, and profiles.

iv. If the flat-roofed portion of the existing primary residence or multi-family building does not have Spanish-tile parapet caps, any flat-roofed portion of the accessory dwelling unit shall have parapets with an upper surface designed to shed water or with a sheet-metal parapet cap that is finished at its outward-facing surface to match the color of the adjacent wall cladding.

c. **Entryways, Windows and Doors.**

i. Windows shall be recessed a minimum of one inch from the face of the window frame to the face of the exterior wall material finish with the exception of those windows permitted in Section (G)(2)(c)(vi).

ii. Windows shall have a sill projecting a minimum of one inch from the exterior material finish, except for flush-mounted windows permitted in Section (G)(2)(c)(vi).

iii. Second-floor windows that are facing abutting properties and not oriented towards the interior of the lot shall have a minimum floor to sill height of 60 inches. Any windows that are necessary by the building code for emergency ingress and egress shall be exempt from this requirement only if there are no other alternative options for placement.

iv. Windows may be of any material permitted by the building code.

v. No internal grids ("grid-between-glass") shall be permitted.

vi. Windows that are a slider operation and/or flush-mounted windows shall only be permitted when the existing primary residence or multi-family building was constructed on or after January 1, 1960.

vii. Any roof and/or wall elements that shelter entryways shall not exceed the height of the accessory dwelling unit at the location of the entryway.

viii. Double doors shall not be permitted.

d. **Balconies, Stairs and Landings.**

i. Balconies for an accessory dwelling unit or junior accessory dwelling unit shall be oriented towards the interior of the lot and shall not be located where they directly overlook adjacent properties.

ii. All stairs and landings for an accessory dwelling unit or junior accessory dwelling unit shall be located towards the interior of the lot and not directly face the public realm.

e. **Equipment and Lighting.**

i. Mechanical equipment, including at a minimum, water heaters, HVAC units, and electrical panels, shall not directly face the public realm.

ii. Exterior light fixtures shall only be located adjacent to entries, stairs, balconies, and outdoor patio areas. All lighting shall be shielded to minimize spillover and directed downwards and away from adjacent properties.

H. Parking Standards for an Accessory Dwelling Unit.

1. Off-street parking for an accessory dwelling unit shall comply with the following standards:

a. A maximum of one off-street parking space shall be provided per accessory dwelling unit or per bedroom, whichever is less, except as otherwise provided in this section.

b. Any uncovered parking space shall have a minimum width of eight feet and a length of 18 feet.

c. Parking may be located in any configuration on the same lot as the accessory dwelling unit, including covered spaces, uncovered spaces, or tandem spaces, or by the use of mechanical automobile parking lifts.

d. If a mechanical automobile parking lift is used, it shall be enclosed and may not be located within any setback area.

e. An uncovered parking space may be located within setback areas on an existing driveway and shall not encroach on the public right-of-way.

f. A covered or enclosed parking space shall comply with zoning standards.

2. An accessory dwelling unit shall share the driveway with the existing primary residential dwelling or multiple residential dwelling units. The driveway to the primary residential dwelling or multiple residential dwelling units may be modified to accommodate onsite parking and shall comply with Section 30.32.130. A separate driveway for the accessory dwelling unit shall not be provided, except where the lot is adjacent to an alley, in which case a driveway from the alley may be added to serve the accessory dwelling unit.

3. On shared driveways that provide access for multiple lots, such as flag lots, parking shall not be permitted on portions of the driveway that are used to provide access to more than one lot.

4. No on-site parking is required for an accessory dwelling unit when one or more of the following is applicable:

    a. The property is located within one-half (0.5) mile walking distance of a public transit stop.

    b. The property is listed on the California Register of Historic Places, Glendale Register of Historic Properties, or any property in an adopted historic district overlay zone with a building identified as a contributing building or structure in an adopted historic resources survey.

    c. When the accessory dwelling unit is located within the existing primary residence or accessory living quarters.

    d. When on-street parking permits are required but not offered to the occupant of an accessory dwelling unit.

    e. When there is a car share vehicle lot, such as ZIP car, located within one block of the accessory dwelling unit.

    f. When it is a junior accessory dwelling unit.

    g. When an accessory dwelling unit(s) qualifies for approval under subsection (E)(4) or (F)(2) of this section.

    h. When a permit application for an accessory dwelling unit is submitted with a permit application to create a new single-family dwelling or a new multi-family dwelling on the same lot, provided that the accessory dwelling unit or the parcel satisfies any other criteria listed in this section.

5. Parking spaces shall not be required to be replaced when a garage, carport, covered parking structure, or uncovered parking space is demolished in conjunction with the construction of an accessory dwelling unit or converted to an accessory dwelling unit. For purposes of this section, "in conjunction with" means construction of an accessory dwelling unit(s) or conversion that falls within the footprint of the original garage, carport, or covered parking structure that is proposed to be demolished/converted for an accessory dwelling unit.

I. Covenant and Agreement.

1. A covenant and agreement shall be executed by the property owner and recorded for a junior accessory dwelling unit prior to final approval of the building permit. The covenant and agreement shall include the following:

    a. The junior accessory dwelling unit shall not be sold separately from the primary residential dwelling.

    b. At all times, the property owner must be an owner-occupant and reside in either the residential dwelling or in the junior accessory dwelling unit.

    c. The junior accessory dwelling unit permit shall run with the land and the junior accessory dwelling unit permit is binding and enforceable on future property owners.

d. The junior accessory dwelling unit shall be removed at the expense of the property owner if the junior accessory dwelling unit permit is invalidated or terminated, upon violation of this section, or upon cessation of the primary land use as a single-family residential dwelling.

SECTION 10. Section 30.70.050 of the Glendale Municipal Code, 1995 is hereby amended to read as follows:

30.70.050 Definitions, "D"

The following definitions are in alphabetical order:

Day care center. "Day care center" means a facility operated by a person, corporation, or association in which less than 24-hour per day non-medical care and supervision is provided outside the home for minor children or elderly persons, provided such facility is licensed by the State of California as a day care center, and provided further that a copy or evidence of the license issued by the State of California is on file with the city clerk prior to occupancy as such a facility. This definition does not include facilities for the care of up to 14 persons in small and large family day care as defined by the California Health and Safety Code.

Director. "Director" means the director of community development or his/her designee.

Detached. "Detached" means any building or structure separated by at least five feet in horizontal distance (measured from eave to eave).

Disability. "Disability" means a disability or handicap as defined by the Federal Fair Housing Act (FFHA). Federal laws define any person with a disability as "Any person who has a physical or mental impairment that substantially limits one or more major life activities; has a record of such impairment; or is regarded as having such impairment.

Dish antenna. "Dish antenna" means any device incorporating a reflective surface that is solid, open mesh, or bar configured and is in the shape of a shallow dish, cone, horn, cornucopia or flat plate, and has a diameter in excess of three feet; which device is used to receive or transmit radio or electromagnetic waves between terrestrially and/or orbitally based units. This definition shall include, but not be limited to, what is commonly referred to as satellite earth stations, satellite receivers, satellite discs, direct broadcast systems (DBS's), television reception only systems (TVROs) and satellite microwave antennas.

Down slope wall. "Down slope wall" means the walled side(s) of any building or structure facing down hill.

Domestic violence shelter. "Domestic violence shelter" means a residential facility which provides temporary accommodations to persons or families who have been the victims of domestic violence. Such a facility may also provide meals, counseling, and other services, as well as common areas for the residents of the facility.

Dwelling. "Dwelling" means a building or any portion thereof designed exclusively for residential purposes, including single and multiple residential dwellings but not including hotels, motels and other places without individual kitchen facilities.

Dwelling unit. "Dwelling unit" means a single unit providing complete, independent living facilities for one person or household, including permanent provisions for living, sleeping, eating, cooking and sanitation. This definition does not include accessory dwelling units or junior accessory dwelling units, which are defined separately in this Chapter.

Dwelling, multiple residential. "Dwelling, multiple residential" means a building or portion thereof designed for occupancy by two or more persons or households living independently of each other in separate units. Includes apartments, townhouses or similar buildings. On-site support services personnel and equipment to maintain independent living is limited to residents of the dwelling.

Dwelling, one residential. "Dwelling, one residential" means a detached building designed exclusively for occupancy by one household. On-site support services personnel and equipment to maintain independent living is limited to residents of the dwelling.

SECTION 11. Pipeline Projects. Accessory dwelling unit and junior accessory dwelling unit permit applications which have been submitted to plan check prior to the adoption of this Ordinance shall be reviewed under the zoning rules and regulations which were in effect on the day prior to adoption of this Ordinance. The foregoing notwithstanding, any applicant may make a request in writing to the Director of Community Development that his or her application be reviewed under the zoning rules and regulations as amended by this Ordinance.

SECTION 12. Pursuant to the California Environmental Quality Act (CEQA) the City Council hereby finds that this Ordinance is exempt from further review under the California Environmental Quality Act (CEQA) pursuant to Public Resources Code Section 21080.17 and California Code of Regulations, Title 14, Chapter 3, Section 15282(h) because this Ordinance implements the provisions of former Government Code Sections 65852.2 and 65852.22 (now codified in Article 2 [commencing with Section 66314] and Article 3 [commencing with Section 66333] of Chapter 13 of Division 1 of Title 7 of, the Government Code), second units in a single-family or multifamily residential zone. Moreover, this Ordinance is exempt from further environmental review under CEQA pursuant to Title14 of the California Code of Regulations Section 15060(c)(1), as it implements provisions of former Government Code Sections 65852.2 and 65852.22 (now codified in Article 2 [commencing with Section 66314] and Article 3 [commencing with Section 66333] of Chapter 13 of Division 1 of Title 7 of, the Government Code), which require ministerial review and approval of accessory dwelling units and junior accessory dwelling units and therefore, does not involve the exercise of discretionary powers by the City.

SECTION 13. Severability. This Ordinance's provisions are severable. If any portion of this Ordinance or its application to any person or circumstance is held invalid or unconstitutional, that decision does not affect the validity of the Ordinance's remaining portions and the Ordinance's application to other persons and circumstances. The City Council declares that it would have passed the remainder of this Ordinance without the invalid or unconstitutional provision.

SECTION 14. Effective Date. This ordinance becomes effective on the thirtieth (30th) day after its adoption.

Passed and adopted by the Council of the City of Glendale on the 3rd day of December, 2024.

Mayor

ATTEST:

City Clerk

STATE OF CALIFORNIA)

COUNTY OF LOS ANGELES) SS.

CITY OF GLENDALE)

I, DR. SUZIE ABAJIAN, City Clerk of the City of Glendale, California, certify that the foregoing Ordinance No. 6034 was passed and adopted by the Council of the City of Glendale, California, by a vote of four-fifths (4/5ths) of the members thereof, at a regular meeting held on the 3rd day of December, 2024 by the following vote:

Ayes:	Gharpetian, Kassakhian, Najarian, Asatryan
Noes:	None
Absent:	None
Abstain:	Brotman

City Clerk

APPROVED AS TO FORM

Principal Assistant City Attorney

Date: 12/4/2024